ORDINANCE NO. 583

An Ordinance Vacating Alleyways on the Following Lands Clay County, Arkansas to-wit: That part of Block 1 and Block 2 all in G W Winn's Addition, Rector described as follows; Beginning at the Southwest corner of Block 2 of G W Winn's Addition; thence N00°42'27"W along the West Line of Block 1 & 2, 470.00 feet to the North line of Lot 11 in Block 1; thence N89°32'15"E along said North line 150.00 feet to the Centerline of the (20 foot) Alley; thence S00°42'27"E along said centerline, 260.00 feet to the centerline of the Alley running between Block 1 and Block 2; thence N89°32'15"E along said centerline, 160.00 feet to the projection of the East line of Block 2; thence S00°42'27'E along said East line, 210.00 feet to the South line of Block 2; thence S89°32'15"W along said South line, 320.00 feet to the true point of beginning, containing 2.50 acres more or less. Subject to any easements that may affect said lands.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANASAS, AS FOLLOWS, TO-WIT:

WHEREFORE, a petition was duly filed with the City Council of the City of Rector, Arkansas, on the 1st day of July, 2024, asking the city Council to vacate and abandon all that portion of an alley designated an alley on That part of Block 1 and Block 2 all in G W Winn's Addition, Rector described as follows; Beginning at the Southwest corner of Block 2 of G W Winn's Addition; thence N00°42'27"W along the West Line of Block 1 & 2, 470.00 feet to the North line of Lot 11 in Block 1; thence N89°32'15"E along said North line 150.00 feet to the Centerline of the (20 foot) Alley; thence S00°42'27"E along said centerline, 260.00 feet to the centerline of the Alley running between Block 1 and Block 2; thence N89°32'15"E along said centerline, 160.00 feet to the projection of the East line of Block 2; thence

S00°42'27'E along said East line, 210.00 feet to the South line of Block 2; thence S89°32'15"W along said South line, 320.00 feet to the true point of beginning, containing 2.50 acres more or less, now appearing of record in Deed Record 2 at page 130 in the office of the Circuit Clerk and Ex-Officio Recorder for the Eastern District of Clay County, Arkansas.

WHEREAS, after due notice as required by law, the City Council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that an alley or the portion thereto, hereinbefore described, has heretofore been dedicated to the public use as an alley herein described; that said alley has not been actually used by the public generally for a period of at least five years subsequent to the filing of the plat; that all the owner os the property abutting upon the portion of an alley to be vacated has filed with Council its written consent to such abandonment; and the public interest and welfare will not be adversely affected by the abandonment of such alley.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1: The City of Rector, Arkansas, hereby releases, vacates and abandons all its rights, together with the rights of public generally, in and to an alley crossing the real property designated as follows:

> That part of Block 1 and Block 2 all in G W Winn's Addition, Rector described as follows; Beginning at the Southwest corner of Block 2 of G W Winn's Addition; thence N00°42'27"W along the West Line of Block 1 & 2, 470.00 feet to the North line of Lot 11 in Block 1; thence N89°32'15"E along said North line 150.00 feet to the

Centerline of the (20 foot) Alley; thence S00°42'27"E along said centerline, 260.00 feet to the centerline of the Alley running between Block 1 and Block 2; thence N89°32'15"E along said centerline, 160.00 feet to the projection of the East line of Block 2; thence S00°42'27'E along said East line, 210.00 feet to the South line of Block 2; thence S89°32'15"W along said South line, 320.00 feet to the true point of beginning, containing 2.50 acres more or less. Subject to any easements that may affect said lands.

SECTION 2: A copy of the e ordinance duly certified by the city Recorder shall be filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the County and recorder in the deed records for the Eastern District of Clay County.

SECTION 3: This ordinance shall take effect and be in force from and after its passage.

Passed and approved by the City Council of the city of Rector, this 13th day of August, 2024.

SHAWN BRANDON, MAYOR

ATTEST:

CITY CLERK

VERIFICATION

STATE OF ARKANSAS)
)
COUNTY OF Clay)

Acknowledge before me this 12th day of August, 2024.

Notary

My Commission Expires:

6/15/26

LINDA ROBINSON
COMM. EXP. 06-15-26
NOTARY PUBLIC
COMM. NO. 12349194
CLAY COUNTY, ARKANSAS

NOTICE OF HEARING

Notice is hereby given that there has been filed in the Office of the City Recorder, Rector, Rector, Arkansas, a petition purporting to the signed by all the abutting landowner by and through its attorney, R. Scott Troutt, to vacate a certain alley within the City of Rector, Arkansas.

The petitioner states that it is the sole abutting landowner, and the said alley has not been used for a period of five years from the date of this notice.

Petitioner: Triple L Investments, LLC

The Zoning Board has set the 1st day of July 2024 at 5:30pm at the Rector Community Center right before the regular scheduled City Council Meeting, for a hearing on the above styled matter.

DATED: 6/8/24

CITY RECORDER

IN THE MATTER OF THE VACATING OF AN ALLEY
IN THE CITY OF RECTOR, ARKANSAS
LOCATED IN THE ORIGINAL TOWN OF RECTOR

Comes now the petitioner, Triple L. Investments, LLC, by and through its attorney, R. Scott Troutt, and for his relief requests that the City of Rector vacate a certain alley within the city limits. The petitioner states that it is the sole abutting landowner on each side of the proposed property and that said alley has not been used for a period of five years from the date of this petition.

WHEREFORE, petitioner prays that it be granted an ordinance vacation the above-described alley and further that the ordinance be filed with the clerk of said county and that ownership of said alley shall revert to the abutting landowner to the center of said alley.

DATED: 5/14/2024

RESPECTFULLY SUBMITTED,

R. Scott Troutt, ABN 2010062
Scott@TrouttLawFirm.com
Attorney for Petitioner

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www.TrouttLawFirm.com

VERIFICATION

STATE OF ARKANSAS)
)
COUNTY OF CRAIGHEAD)

Subscribed and sworn to before me this 14th day of May 2024.

Pamela L. Troutt
Notary Public

My Commission Expires:
09/19/2031

